

24CHCV04826 24CHCV04826

County: los-angeles

Division: Civil Law and Motion

Department: F47

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Case Number: 24CHCV04826 Hearing Date: June 24, 2026 Dept: F47

Dept. F47

Date: 6/24/26 TRIAL DATE: 8/23/27

Case #24CHCV04826

MOTION FOR TERMINATING SANCTIONS

Motions filed on 2/17/26.

MOVING PARTY: Defendant Horace Ting

RESPONDING PARTY: Plaintiffs Nathan Gonzalez and Saleen Delgado

NOTICE: ok

RELIEF REQUESTED: An order imposing terminating sanctions. Additionally, Defendant Horace Ting requests monetary sanctions against Plaintiff Saleen Delgado and Plaintiffs' attorney, Abdul 'Sal' Wakil, in the amount of \$869.95, payable to Defendant and his counsel, Bretoi, Lutz & Steele, ad \$1,500.00 payable to the county pursuant to CCP 177.5.

RULING: The motion is denied without prejudice.

SUMMARY OF FACTS & PROCEDURAL HISTORY

This action arises out of an automobile accident that occurred on 1/8/23. On 12/31/24, Plaintiffs Saleen Delgado (Delgado) and Nathan Gonzalez (Gonzalez) (collectively, Plaintiffs) filed this action against Defendant Horace Ting (Defendant) seeking to recover for personal injuries and damages allegedly resulting from the accident. On 2/26/25, Defendant answered the complaint and filed a cross-complaint against Gonzalez. On 5/22/25, default on the cross-complaint was entered against Gonzalez. On 12/4/25, Gonzalez's motion to set aside the default was granted and his answer to the cross-complaint was filed the same day.

Pursuant to Defendant's motions to compel, on 11/21/25, this Court ordered Plaintiffs to provide verified responses, without objections, to Form Interrogatories, Set 1; Special Interrogatories, Set 1; and Demands for Production, Set 1, on or before 11/27/25. (See 11/21/25 Minute Order).

Defendant contends that Delgado "has not produced [responses to] DEFENDANT Form Interrogatories, Special Interrogatories and Requests for Production." (See Motion, p.3:11-12). On 12/8/25, Defendant's counsel wrote to Plaintiffs' counsel regarding the outstanding discovery responses. (Hovsepian Decl., Ex.B).

On 2/17/26, Defendant filed and served the instant motion seeking an order imposing terminating sanctions. Additionally, Defendant requests monetary sanctions against Plaintiff Saleen Delgado and Plaintiffs' attorney, Abdul 'Sal' Wakil, in the amount of \$869.95, payable to Defendant and his counsel, Bretoi, Lutz & Steele, and \$1,500.00 payable to the county pursuant to CCP 177.5. Plaintiffs have not opposed or otherwise responded to the motion.

On 6/17/26, Defendant filed and served a Notice of Non-Opposition and Supplemental Brief in support of the motion.

On 6/18/26, Delgado filed a request for dismissal without prejudice of the complaint as to her only which was entered the same day.

On 6/22/26, Plaintiffs' attorney filed a declaration, without a proof of service, informing the Court of the request for dismissal filed by Delgado; that he had requested that Defendant take the motion off calendar and had received no response.

ANALYSIS

Terminating and monetary sanctions are warranted for failure to comply with a Court order. CCP 2031.300(d); CCP 2023.030(d). However, Defendant has failed to provide clear notice as to against whom terminating sanctions are requested and/or the exact basis for same. See CRC 3.111(a) ("A notice of motion must state in the opening paragraph the nature of the order being sought and the grounds for issuance of the order.").

Here, the first paragraph of the notice of motion indicates that Defendant "will move this court for a Terminating Sanction Order, under Chapters 7 and 14 of the Code of Civil Procedure" without specifying whether the order is sought against one or both of the Plaintiffs. (See Motion, p.1:27-28). The second paragraph of the notice of motion indicates that Defendant seeks monetary sanctions against Delgado and her attorney of record. (See Motion, p.2:1-7). The memorandum of points and authorities also only specifically address Delgado's alleged failure to comply with the Court's 11/21/25 order to provide discovery responses. (See Motion, p.3:11-20). However, later in the memorandum of points and authorities, Defendant argues "[a] terminating sanction is mandated in this matter due to PLAINTIFFS and PLAINTIFFS' attorney of record, continued lack of respect and blatant disregard for this court, its proceedings and orders" which implies that Defendant is seeking terminating sanctions against both Plaintiffs. (See Motion, p.4:4-6). The proposed order also refers to the action being dismissed with prejudice and monetary sanctions being imposed against Delgado and her attorney. (See proposed Order, p.1:22-p.2:2 (pages are numbered 9 and 10). Adding to the confusion, immediately after referring to both Plaintiffs, the motion discusses a singular "Plaintiff's" discovery failures. (See Motion, p.4:7-10, p.4:23-26, p.5:3-4, p.5:6-14). Previously, Defendant had defined the singular "PLAINTIFF" as Plaintiff Saleen Delgado. (See Motion, p.3:11). Further confusing matters, the 12/8/25 meet and confer letter attached to the declaration of attorney Hovsepian indicates that neither Plaintiff served the discovery responses ordered by the Court. (See Hovsepian Decl., Ex.B). Also, it is not clear if the request for terminating sanctions is based on one or both Plaintiff's failure to provide responses to the Form Interrogatories, Special Interrogatories and/or Demands for Production as ordered by the Court on 11/21/25 or a failure to provide responses to the document demands only as the motion only cites authority specifically relating to document demands (CCP 2031.300(c) and (d)). (See Motion, p.3:22-25, p.4:13-15).

The Court further notes that Defendant's request for judicial notice, which is included as page 6 of the motion is not in the proper format. A request for judicial notice must be made in a separate document. CRC 3.1113(l). Also, the additional bases

for the request for terminating sanctions set forth in the Notice of Non-Opposition and Supplemental Brief filed and served on 6/17/26 cannot be considered as Plaintiffs were not provided sufficient notice of such grounds before the hearing. See CCP 1005(b).

Finally, despite being warned on several occasions, in violation of CRC 3.1110(f)(4) defense counsel failed to electronically bookmark the exhibits attached to the Notice of Non-Opposition and Supplemental Brief. (See 11/21/25 Minute Order, p.6; 12/4/25 Minute Order, p.3; 4/21/26 Minute Order, p.4). Counsel for the parties are, again, warned that failure to comply with this rule in the future may result in matters being continued so that papers can be refiled in compliance with the rule, papers not being considered and/or the imposition of sanctions.

CONCLUSION

The motion is denied without prejudice.

Dept. F47

Date: 6/24/26

TRIAL DATE: 8/23/27

Case #24CHCV04826

MOTION TO DEEM

REQUESTS FOR ADMISSIONS ADMITTED

Motion filed on 2/17/26.

MOVING PARTY: Defendant Horace Ting

RESPONDING PARTY: Plaintiffs Nathan Gonzalez and Saleen

Delgado

NOTICE: ok

RELIEF REQUESTED: An order that the truth of each

matter specified, and the genuineness of each document specified in the

Requests for Admissions served on Plaintiffs, Nathan Gonzalez and Saleen

Delgado, on 12/4/25, be deemed admitted and conclusively established for all purposes in this action. Additionally,

Defendant requests an order imposing sanctions against Plaintiffs and Plaintiffs' attorney in the amount of \$760.00.

RULING: The motion is denied, in part; granted, in part; and moot, in part.

SUMMARY OF FACTS & PROCEDURAL HISTORY

This action arises out of an automobile accident that occurred on 1/8/23. On 12/31/24,

Plaintiffs Saleen Delgado (Delgado) and Nathan Gonzalez (Gonzalez)

(collectively, Plaintiffs) filed this action against Defendant Horace Ting

(Defendant) seeking to recover for personal injuries and damages allegedly

resulting from the accident. On 2/26/25,

Defendant answered the complaint and filed a cross-complaint against Gonzalez. On 5/22/25, default on the cross-complaint was entered against Gonzalez. On

12/4/25, Gonzalez's motion to set aside the default was granted and his answer to the cross-complaint was filed the same day.

On 12/4/25, Defendant served Plaintiffs with Requests for

Admissions making responses due 1/6/26.

(Hovsepian Decl., Ex.A).

Plaintiffs failed to serve responses; therefore, on 1/21/26, Defendant's

counsel sent a letter to Plaintiffs' counsel regarding the overdue

responses. (Id., Ex.B). Plaintiffs still did not serve responses. (Id. ¶17).

On 2/17/26, Defendant filed and served the instant motion

seeking an order deeming the truth of each matter specified, and the

genuineness of each document specified in the Requests for Admissions served on

Plaintiffs admitted and conclusively established for all purposes in this

action. Additionally, Defendant requests

an order imposing sanctions against Plaintiffs and Plaintiffs' attorney in the

amount of \$760.00. Plaintiffs have not

opposed or otherwise responded to the motion.

On 6/17/26, Defendant filed and served a Notice of

Non-Opposition in support of the motion.

On 6/18/26, Delgado filed a request for dismissal without

prejudice of the action as to her which was entered the same day.

On 6/22/26, Plaintiffs' attorney filed a declaration in

opposition to the motion indicating that responses, without objections, have

been served on Defendant. A copy of the

responses with a proof of service is attached to the declaration.

ANALYSIS

Based on the dismissal of Delgado's claims on 6/18/26,

the request to deem matters admitted as to her is moot.

Due to Gonzalez's service of responses, without

objections, before the hearing, the Court cannot deem the matters

admitted. See CCP 2033.280(c); St.

Mary (2014) 223 CA4th 762, 775-776. However, sanctions are still mandatory for Gonzalez's

failure to serve timely responses to the requests for admissions necessitating

the instant motion. CCP 2033.280(c). The Court finds that the amount of sanctions

requested is excessive. Defense counsel

seeks to recover for 2 hours of time for travel time and court appearance on

the motion. (See Hovsepian Decl.,

p.6:26-27). However, defense counsel

appeared telephonically at the last motion hearing. (See

4/21/26 Minute Order). Therefore

the Court finds that sanctions in the amount of \$585.00 (2 hours to prepare the

motion + 1 hour to prepare for and appear at the hearing multiplied by

\$175/hour + \$60 filing fee) are reasonable under the circumstances. (See Hovsepian Decl., p.6:22-28).

CONCLUSION

The motion is moot as to Plaintiff Saleen Delgado due to

the dismissal of her claims on 6/18/26. The

request to deem matters admitted as against Plaintiff Nathan Gonzalez is denied. Sanctions are imposed on Gonzalez and his attorney,

Abdul 'Sal' Wakil, in the amount of \$585.00, payable within 30 days.